

23CHCP00457 23CHCP00457

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-09-08

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Case Number: 23CHCP00457 Hearing Date: September 8, 2026 Dept: F43

Dept. F43

Hearing Date: 09-08-26

Case # 23CHCP00457, Stein v.

Farmers Insurance Exchange

Trial Date: None set.

MOTION TO COMPEL

RESPONSES TO FORM INTERROGATORIES

MOVING PARTY:

Respondent Farmers Insurance Exchange

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Order compelling petitioner to serve

objection-free, verified responses to respondent's first set of supplemental form interrogatories and imposing \$525 in monetary sanctions on petitioner and her counsel of record.

RULING: Motion is taken off-calendar.

SUMMARY OF ACTION

Petitioner Natalya Stein (Petitioner) was involved in an automobile accident on May 10, 2021 near Interstate 5 in Santa Clarita, CA. Petitioner made a claim for uninsured/underinsured arbitration with respondent Farmers Insurance Exchange (Respondent).

On November 20, 2023, Petitioner filed a petition, pursuant to Insurance Code section 11580.2, subdivision (f), which was drafted by Respondent, in order to obtain a case number, to bring the matter under this court's jurisdiction, and to file motions to compel Petitioner to comply with propounded discovery.

Counsel for both parties appeared at the Case Management Conference on March 27, 2024. (03/27/2024 Minute Order.) Petitioner represented the case was filed incorrectly and made an oral request for dismissal, which Respondent did not oppose. The court (Hon. Gary Micon) dismissed the petition without prejudice on March 27, 2024.

On September 23, 2024, Respondent filed a notice of change in handling counsel, identifying Scott Stratman as new counsel.

On March 28, 2026, Respondent served its first set of supplemental form interrogatories on Petitioner. (Declaration of Nichelle D. Jordan ¶ 4, Exh. A.) Counsel sent two letters on May 13, 2026 and June 9, 2026, requesting verified responses. (Id. ¶¶ 4-5, Exhs. B-C.) Petitioner's counsel stated responses would be sent by June 12, 2026. (Id., Exh. C.) No responses have been served.

On June 18, 2026, Respondent filed the instant motion for the court to compel Petitioner's objection-free responses to supplemental form interrogatories that were served on March 28, 2026, and to impose \$525 in monetary sanctions against Petitioner and her counsel. No opposition was filed.

ANALYSIS

A. Compelling Form Interrogatories and Ins. Code, § 11580.2, subd. (f)

A propounding party may move to compel responses to form interrogatories where the responding party fails to provide any responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-06.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

This petition arises from an uninsured/underinsured arbitration. As such, the superior court in the county where the alleged accident occurred must hear all discovery motions discovery concerning the same accident. (Cal. Ins. Code, § 11850.2, subd. (f)(1)-(2).) The insurer may serve interrogatories on the insured more than 20 days after the alleged accident without leave of the court. (Code Civ. Proc, § 11850.2, subd. (f)(6); see also Code Civ. Proc., § 2030.010.)

The court is perplexed because the record indicates this matter was dismissed without prejudice over two years ago and the dismissal was never set aside. Thus, it is unclear how this court has jurisdiction to order discovery in this matter.

CONCLUSION and ORDER

Defendant Farmers Insurance Exchange's motion to compel form interrogatory responses is taken off-calendar.